

Smt. Jyoti Vishwakarma vs Pushpendra Pratap Singh Vishwakarma on 2 January, 2023

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 6

Case :- TRANSFER APPLICATION (CIVIL) No. - 422 of 2022

Applicant :- Smt. Jyoti Vishwakarma

Opposite Party :- Pushpendra Pratap Singh Vishwakarma

Counsel for Applicant :- Ashok Kumar Gupta, Akash Kishan

Counsel for Opposite Party :- Indra Raj Singh, Adarsh Singh

Hon'ble J.J. Munir, J.

1. This is a transfer application moved by the wife seeking transfer of Matrimonial Petition No. 193 of 2021, Pushpendra Pratap Singh vs. Smt. Jyoti Vishwakarma, under Section 13(1)(ib) of the Hindu Marriage Act from the Principal Judge, Family Court, Hamirpur to the Principal Judge, Family Court, Banda.

2. This application has come up for hearing today.

3. Mr. Ashok Kumar Gupta, learned Advocate appears on behalf of applicant but no one appears on behalf of the opposite party though a counter affidavit has been filed on his behalf on 28.09.2022. The name of learned counsel appearing for the opposite party is printed in the cause list.

4. It is pointed out by learned Counsel for the applicant that assertion in paragraph nos.12 and 13 of the affidavit have not been denied and states that a case is pending inter partes at Banda, and in case, the present proceedings are moved there, it would be convenient to both parties as they can request a single date there. It is next submitted that the applicant is a housewife and has no independent source of income. She stays with her parents along with her minor child, whom she has to take care of. It is argued that given the financial and physical constraints, it is not possible for the applicant to defend outstation proceedings at Hamirpur, travelling on each date fixed from Banda to

Hamirpur. It is next submitted that the opposite party, who is an able-bodied man and financially well-off, can conveniently defend at Banda. It is also submitted that convenience of the wife, in causes matrimonial, has to be accorded primacy.

5. It is not disputed that at least one case inter partes is pending at Banda. It is the opposite party's case that he has not applied for transfer of the case pending at Banda to Hamirpur or to any other station. Under the circumstances, opposite party would have to appear and defend the proceedings at Banda in any event. In case, the present proceedings are transferred from Hamirpur to Banda, it would promote ease of litigation for both parties. The parties can request a single date in both matters, in consequence whereof time, resources and energy of parties would be saved. The applicant has a young child of parties to take care of and being a woman, is not in a position to undertake the journey from Banda to Hamirpur, travelling a distance of 100 kms. one way on each date scheduled. By contrast, the opposite party appears to be an able-bodied man with sufficient resources, who can conveniently defend proceedings at Banda. Quite apart, convenience of the wife about the venue is favoured in matrimonial causes and nothing has been shown in this case to make it different from the rule. In this regard, reference may be made to the decision of the Supreme Court in *Anjali Ashok Sadhwani v. Ashok Kishinchand Sadhwani*, AIR 2009 SC 1374, where it has been held that in matrimonial causes, convenience of the wife is a good ground to consider while granting a transfer. In this connection, reference may be made further to the recent decision of the Supreme Court in *N.C.V. Aishwarya v. A.S. Saravana Karthik Sha*, 2022 SCC OnLine SC 1199, where on the issue in hand, it has been held :

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socioeconomic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

(Emphasis by Court)

6. In the opinion of this Court, a fit case for transfer is made out.

7. In the result, this transfer application succeeds and is allowed. The proceedings of Matrimonial Petition No. 193 of 2021, Pushpendra Pratap Singh vs. Smt. Jyoti Vishwakarma, under Section 13(1)(ib) of the Hindu Marriage Act are withdrawn from the Principal Judge, Family Court, Hamirpur and made over to the Principal Judge, Family Court, Banda, who shall proceed to try the petition himself or assign it to an Additional Principal Judge available on the Court, as he deems fit. In either case, trial shall be expedited and endeavour made to conclude the same within six months of the date of receipt of a copy of this order.

8. Let this order be communicated to the Principal Judge, Family Court, Banda and the Principal Judge, Family Court, Hamirpur by the Registrar (Compliance).

Order Date :- 2.1.2023 P.S.Parihar